

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-17

BAKERLY, LLC

COMPLAINANT,

v.

SEAFRIGO USA INC.,

RESPONDENT.

**SEAFRIGO MEMORANDUM IN RESPONSE TO
REQUEST FOR SANCTIONS RAISED IN BAKERLY REPLY BRIEF**

In its Reply Brief, Bakerly accuses Seafrigo and its counsel of lying to the Administrative Law Judge in its representations regarding Seafrigo's discovery responses. Bakerly also contends that sanctions should be imposed because Bakerly's discovery responses were untimely. Because Bakerly's allegations are baseless, its request for sanctions should be rejected.

Bakerly does not allege, nor could it, that Seafrigo failed to produce responsive documents in discovery. Instead, it takes Seafrigo to task for asserting that it provided documents in discovery in folders and asserts that the documents were produced as a data dump. In fact, because there was no discovery protocol in place, the documents were produced in a standard e-discovery format. Seafrigo produced the documents in files labeled with corresponding Bates numbers.¹ Thus, there

¹ In the course of the document production, the documents were converted to being labeled with Bates stamps by a third-party vendor. Production of documents with Bates stamps is done in the ordinary course of litigation. It was not done to make review more difficult and did not have any appreciable impact on Bakerly's ability to review such documents.

were hundreds of individual files related to specific communications. Accordingly, contrary to Bakerly's suggestion, Seafrigo did not simply produce thousands of undifferentiated documents but instead produced them in individual PDFs. This is the same format that Seafrigo produced documents in response to Bakerly's first set of discovery requests on November 4, 2022 to which Bakerly never objected.

Bakerly reasserts that discovery responses were untimely, as it did in its Motion for Extension of Time to file its Initial Brief. It is noteworthy that Bakerly does not dispute that it agreed to extend the deadline for Seafrigo to produce discovery. *See, e.g., Collins Dec. at para. 3* ([T]he parties discussed and mutually agreed to extending time for document production until April 14, 2023. *See March 28, 2023 referencing until April 14, Exhibit 61.*). Having been granted an additional five days to file its Initial Brief, Bakerly now argues in its Reply Brief that it did not have time to review the documents produced. There is no legitimate basis for such an assertion.

Among the other assertions made by Bakerly in seeking sanctions against Seafrigo is that Seafrigo failed to provide its Reply to Bakerly's Proposed Findings of Fact (PFFs) in "word-processing" format. On June 2, 2023, Bakerly requested the document in Word format. Seafrigo provided the document in Word format less than two hours later. (*See Exhibit A.*) Seafrigo is disappointed that such a minor oversight which clearly had no adverse impact on Bakerly warrants discussion.

Conclusion

For the reasons set forth herein, the request for sanctions by Bakerly should be denied.

Respectfully submitted,



Brendan Collins

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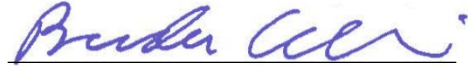
bcollins@gkgglaw.com

Attorney for Respondent, Seafrigo USA Inc.

June 21, 2023

CERTIFICATE OF SERVICE

I do hereby certify that I have delivered a true and correct copy of the foregoing document to the parties to this proceeding by depositing same in the United States mail, first class postage prepaid, and/or via email transmission, this 21st day of June, 2023.

A handwritten signature in blue ink, appearing to read "Brendan Collins", is written over a horizontal line.

Brendan Collins

Exhibit A

Attachments: [image001.png](#)
[Seafrigo Response to Bakerly Statement of Facts 22-17 \(00389752-2xC17C4\).docx](#)

From: Brendan Collins
Sent: Friday, June 2, 2023 8:29 PM
To: Julia Banegas <Julia.Banegas@huschblackwell.com>; Carlos Rodriguez <Carlos.Rodriguez@huschblackwell.com>
Subject: Fwd: Seafrigo Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact - 22-17

Julia, see attached.

Sent from my iPhone

Begin forwarded message:

From: "Banegas, Julia" <Julia.Banegas@huschblackwell.com>
Date: June 2, 2023 at 6:55:32 PM EDT
To: Brendan Collins <BCollins@gkglaw.com>, "John H. Kester" <jkester@gkglaw.com>
Cc: "Rodriguez, Carlos" <Carlos.Rodriguez@huschblackwell.com>, "Martel, Jasmine" <Jasmine.Martel@huschblackwell.com>
Subject: RE: Seafrigo Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact - 22-17

Brendan and John:

Please provide the word version of the Responses to the Proposed Findings of Fact.

Regards,
Julia

Julia Banegas

Attorney
Direct: 202-378-2317
Julia.Banegas@huschblackwell.com

From: Cindy Engelbrecht <CEngelbrecht@gkglaw.com>
Sent: Wednesday, May 31, 2023 5:04 PM
To: Secretary <secretary@FMC.gov>; judges@fmc.gov
Cc: Rodriguez, Carlos <Carlos.Rodriguez@huschblackwell.com>; Banegas, Julia <Julia.Banegas@huschblackwell.com>; Brendan Collins <BCollins@gkglaw.com>
Subject: Seafrigo Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact - 22-17

[EXTERNAL EMAIL]

Secretary Cody,

Attached please find Respondent Seafrigo's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact for filing in Docket No. 22-17. Supporting declarations and exhibits will follow in a separate email.

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<image001.png>

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